



Stephen Cooke <stephencooke.c@gmail.com>

RE: Cooke & Cooke; Asgard Infinity EWRAP Super.pdf

3 messages

stephencooke.c@gmail.com <stephencooke.c@gmail.com>

Wed, Jun 12, 2024 at 1:20 AM

To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Hi Matthew,

Please find attached.

Regarding "no other super" see attached "Asgard Infinity EWRAP Super.pdf" – Need to know more about this?

Thank you.

Stephen Cooke

From: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>**Sent:** Wednesday, June 12, 2024 2:53 PM**To:** stephencooke.c@gmail.com**Subject:** FW: Cooke & Cooke

Dear Stephen

Here is an email reply to my email to the other side of yesterday. It confirms Heather's current super balance to be \$330,454.32, and says she has no other super. This is more than in her financial statements which might have been based on earlier statements. I used this amount in our preliminary calculations of yesterday. They will want to also use your current super balance. Your last filed financial statement showed \$164,304 as at 18 March 2024. Can you get an undated balance and download something showing it.

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229**E:** mshepherd@ramsdenlaw.com.au



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BOOK A
MEDIATION WITH ME

From: Tayleh Soames <tsoames@delaneyroberts.com.au>

Sent: Wednesday, June 12, 2024 12:14 PM

To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>; Contact <contact@ramsdenlaw.com.au>

Cc: Anna Roberts <aroberts@delaneyroberts.com.au>; Olivia Shedden <oshedden@delaneyroberts.com.au>; Amy Szlicht <aszlicht@delaneyroberts.com.au>

Subject: RE: Cooke & Cooke

Dear Colleagues

We refer to your email dated 11 June 2024 regarding the styling of the Merewether property. Our client's proposal on 29 May 2024 was contingent upon your client agreeing to contact the bank to arrange that the three loan repayments to be put on hold and to have the property cleaned and photographed by 4 June 2024. As your client has not agreed to those requests and given our client's current financial obligations, our client cannot afford to cover half the costs. Styling is not a necessity, and if your client wishes to proceed with it, he should bear the full costs.

Superannuation

We are instructed to respond to your email of 11 June 2024 regarding our client's superannuation as follows, following your numbering:

1. The value of our client's superannuation is \$330,454.32.

2. **Attached.**

-

3. No.

Yours faithfully

TAYLEH SOAMES

Associate Solicitor

LLB GradDipLegPrac, LLM (Applied Law)



T 02 4952 3901

E tsoames@delaneyroberts.com.au

274 Brunker Road, Adamstown NSW 2289

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From: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Sent: Tuesday, June 11, 2024 3:39 PM

To: Amy Szlicht <aszlicht@delaneyroberts.com.au>; Contact <contact@ramsdenlaw.com.au>

Cc: Tayleh Soames <tsoames@delaneyroberts.com.au>; Anna Roberts <aroberts@delaneyroberts.com.au>; Olivia Shedden <oshedden@delaneyroberts.com.au>

Subject: RE: Cooke & Cooke

Dear Colleagues

We refer to the letter attached to your email of 29 May 2024.

It advised that your client was agreeable to the styling on the basis proposed in our email of the same date. That is, that your client pay in the first instance with one half of the amount (we understand the total cost to be about \$2,000) to be reimbursed to her from Stephen's share of the sale proceeds.

Is she still so agreeable? If not, is she agreeable to Stephen paying with him to be reimbursed in the same way?

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229

E: mshepherd@ramsdenlaw.com.au



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BOOK A
MEDIATION WITH ME

From: Amy Szlicht <aszlicht@delaneyroberts.com.au>

Sent: Wednesday, May 29, 2024 2:39 PM

To: Contact <contact@ramsdenlaw.com.au>; Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Cc: Tayleh Soames <tsoames@delaneyroberts.com.au>; Anna Roberts <aroberts@delaneyroberts.com.au>; Olivia Shedden <oshedden@delaneyroberts.com.au>

Subject: Cooke & Cooke

You don't often get email from aszlicht@delaneyroberts.com.au. [Learn why this is important](#)

Dear Colleagues,

We refer to the above matter and previous correspondence.

Please find **attached** letter dated 29 May 2024 for your attention.

Please do not hesitate to contact me should you wish to discuss this matter.

Yours faithfully

AMY SZLICHT
Legal Assistant



T 02 4952 3901
E aszlicht@delaneyroberts.com.au

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2 attachments



Stephen Cooke - Future Super Balance 12-06-24.pdf
886K



Asgard Infinity EWRAP Super.pdf
667K

Matthew Shepherd <mshepherd@ramsdenslaw.com.au>
To: "stephencooke.c@gmail.com" <stephencooke.c@gmail.com>

Wed, Jun 12, 2024 at 2:17 AM

Dear Stephen

Mediation - attendance

Yes, I was planning to attend if you wish me to. I am available on 27 June for Newcastle. That's why I included it in the alternative dates.

Normally, I meet the client at 9am on the day as there will be some things for us to discuss. I imagine the mediation will go to at least 4pm and possibly longer – so probably at least 7 hours at the mediation venue. I will not charge for all my travel time (in realty, probably around 5 hours round trip?). I will cap my total time for the day including travel time at a maximum of 8 hours. With GST that is \$5,500. I might travel up the night before so I am fresh when I meet you at 9am. In which case, I generally ask clients to contribute to accommodation.

Another option is you have a Newcastle barrister attend you with. I think you have had a Newcastle barrister at one of the earlier court events. They might be cheaper for the day but there would be additional cost of getting them briefed and them preparing.

I agree with your comment that is generally best to have everyone attend in person at the venue. My experience is people more closely engage that way than Zoom. But we could suggest Zoom, although no one has yet raised it.

Mediation date and venue

I rang Mediations Newcastle. They do not have rooms available for 27 June. If they did the cost is around \$400.

Can I confirm 27 June and using rooms at Delany Roberts?

Super

You have attached an undated document. It seems to be a request to rollout \$2,800 from QSuper to an Asgard Fund. It does not show whether it was submitted or actioned.

We can ask for more details but I want to make sure it is not counter productive to do so. Do you know when this document was prepared? How did you obtain it? I do not want to disclose it if you obtained it in a way that might be embarrassing.

Also we should go back in one go with further requests – not in a series of isolated requests. To do go back repeatedly show us to be disorganised (I want Heather to take us seriously) and

creates unnecessary costs. Something might arise out of Hugh's work by which we ask for more documents.

At the appropriate time, we could ask Heather to log into her personal ATO portal – as it generally shows all super the person has.

Another option is we can through the court portal and ask the Australian Tax Office to advise all funds they are aware that a party to proceedings holds. The information is posted on the matter in the court portal. All parties and lawyers can see it.

Trust

It is common for professional people such as doctors to use discretionary family trusts to hold assets and to distribute income tax efficiently. Typically, the trustee company invoices patients or clients who then pay the fee to the trustee (which pays tax at a lower corporate rate than the doctor).

The Trust Deed shows:

1. A company known as Heather Anne Cooke Pty Ltd is the trustee. A trustee of a trust holds property not for its own benefit but for the benefit of the beneficiaries of the trust.
2. The Designated Beneficiary is Heather. Typical of most discretionary family trusts, the beneficiaries are also stated to be children and family of the Designated Beneficiary.
3. The Appointor is the person who can dismiss and appoint new trustees. Heather is named as the Appointor.

The question is does the trust currently hold any assets. The tax documents I hold show Heather to date operating as a sole trader. They do not show any tax received from a trust.

We only have tax returns up to June 2026. She should have lodged her June 2023 returns by now so we can ask for them.

Regards,

MATTHEW SHEPHERD

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BOOK A
MEDIATION WITH ME

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Thu, Jul 4, 2024 at 10:23 PM

Please see below and attached.

Regards,

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

[Quoted text hidden]



Trust Deed for Heather Anne Cooke Trust-2.pdf
3494K